

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: ORDER FROM RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1382)

FILED BY:

TENTATIVE RULING:

See line 22.

21. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUEST TO PRESENT CLAIM (N25-1384)

FILED BY:

TENTATIVE RULING:

See line 22.

22. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1385)

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Petitioners' Claims of Estate of O.Y., Claims of A.Y., Claims of W.Y., Wrongful Death Claims of A.Y. and W.Y. Motion for Relief from the Government Claims Presentation requirement.

The Court rules that **all four of Petitioner's government claims were filed timely. Accordingly, the petition is granted.**

Factual Background

On January 8, 2022, City law enforcement officers responded to a domestic disturbance report at 2201 San Jose Drive, Apt E203, Antioch, CA 94509, where O.Y. (at that time still alive), and her brother, Petitioner W.Y., resided with their biological parents, Jessika Fulcher ("Mother Fulcher") and Warren Young, Sr. ("Father Young"). ("Petition for Order for Relief from Requirement to Present Claim (Gov. Code § 946.6)," In Re Claim of the Estate of O.Y. v. City of Antioch, et al., Case No. N25-1382 ("Petition"), 1 Ex. 1, p. 1.) During this visit, the law enforcement officers allegedly witnessed indications that O.Y. and Petitioner W.Y. were unsafe and subject to abuse. Yet, the agents allegedly failed to report this discovery to Contra Costa County Child Protective Services ("CPS"), as purportedly required by the Child Abuse and Neglect Reporting Act ("CANRA"). (Petition, Ex. 1, p. 1.)

At the time of this domestic disturbance report, O.Y. and Petitioner W.Y. were wards of the juvenile court, and subject to an ongoing juvenile dependency action in this Superior Court, due to concerns of abuse and neglect by their biological parents. (Petition, Ex. 3, ¶ 4.) Several months later, in April 2022, this Superior Court closed the dependency case, and the biological parents resumed full legal authority over O.Y. and Petitioner W.Y. (Petition, Ex. 3, ¶ 4.)